

**NEW YORK STATE SUPREME COURT  
COUNTY OF NEW YORK**

GIRLIE GAVIOLA, individually, and GIRLIE GAVIOLA *ex rel.* ESTATE OF TINA GAVIOLA,

*Plaintiff,*

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. SERGEANT KAITLIN MOONEY, Tax #950909, P.O. JOSEPH ORLANDO, Shield #2340, SYDELL GROUP LLC, THE FREEHAND HOTEL COMPANY LLC, FREEHAND HOSTEL MANAGER LLC, GEORGE SUPER TOPCO LLC, MICHAEL LAMARRE, PAUL KASHMAN, MILDRED ANTOINE, and JOHN/JANE DOES 1-10,

*Defendants.*

Index No.: 159758/2021

**VERIFIED COMPLAINT**

TRIAL BY JURY  
DEMANDED

Plaintiffs GIRLIE GAVIOLA, individually, and GIRLIE GAVIOLA *ex rel.* ESTATE OF TINA GAVIOLA (jointly, “Plaintiff(s)”), by and through their attorneys, SUTTON SACHS MEYER PLLC, as and for their verified complaint against defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. SERGEANT KAITLIN MOONEY, Tax #950909, P.O. JOSEPH ORLANDO, Shield #2340, SYDELL GROUP LLC, THE FREEHAND HOTEL COMPANY LLC, FREEHAND HOSTEL MANAGER LLC, GEORGE SUPER TOPCO LLC, MICHAEL LAMARRE, PAUL KASHMAN, MILDRED ANTOINE, and JOHN/JANE DOES 1-10 (jointly, “Defendants”), hereby alleges the following:

**INTRODUCTION**

1. Summarily, Plaintiff brings this action for money damages – special, compensatory, punitive, as well as costs and attorneys’ fees – against Defendants for their joint and several conduct, purportedly acting under color of state law, for *inter alia*, an August 27<sup>th</sup>,

2020 assault, battery, false arrest, sequestration, confinement, indignity, humiliation, loss of freedom, deprivation of rights, privileges, and/or immunities, malicious prosecution, false imprisonment without probable cause, warrant, right, or pretense of legal process under state and federal law, personal injuries and emotional damage inflicted, past, present, and future, arising out of Defendants' unlawful search, unlawful seizure, violation of due process, sequestration, confinement, indignity, humiliation, loss of freedom, deprivation of rights, privileges, and/or immunities, malicious prosecution, false arrest, false imprisonment without probable cause, warrant, right, or pretense of legal process under state and federal law, violation of civil rights, violation of federal and state constitutional rights to be free from illegal search and seizure, Defendants' intentional, willful, and malicious violation of Plaintiffs' civil rights secured by 42 U.S.C. § 1983, 42 U.S.C. § 1985, and 42 U.S.C. § 1988 insofar as Plaintiffs were deprived of their rights, privileges, and immunities secured by the Constitution of the United States of America, as well as the Fourth and Fourteenth Amendments to the United States Constitution, and Article I, §§ 6 and 12 of the New York State Constitution; the nature of this action against Defendants further consists of, *inter alia*, negligence in the performance of police duties, use of excessive and unreasonable force in the performance of police duties, negligence in hiring and retaining incompetent and unfit police personnel, negligence in the training and instruction of police personnel, including, *inter alia*, failure to adequately supervise and discipline police personnel; the nature of this action against Defendants further consists of, *inter alia*, negligent entrustment, failure to warn and protect from violent individuals, intentional or malicious harm to another, *prima facie* tort, conspiracy to commit carry out a *prima facie* tort, trespass to chattels, administrative negligence, aiding and abetting the commission of torts, alternative liability, and conspiracy to commit all of the foregoing acts by and between Defendants and/or Defendants' agents (the "Arrest").

### THE PARTIES

2. At all relevant times herein, plaintiffs GIRLIE GAVIOLA, individually, and GIRLIE GAVIOLA *ex rel.* ESTATE OF TINA GAVIOLA, is a natural person residing in the County of New York, City and State of New York, and administratrix of the estate of her mother, TINA GAVIOLA, deceased on April 8<sup>th</sup>, 2021.

3. At all relevant times herein, defendant CITY OF NEW YORK (“City”) is a municipal corporation duly organized under the laws of the State of New York, maintaining principal office addresses of 100 Church Street, New York, NY 10007 and c/o Office of the New York City Comptroller, 1 Centre Street, Room 1125, New York, NY 10007, authorized under the laws of the State of New York to maintain a police department – namely, defendant NEW YORK CITY POLICE DEPARTMENT (“NYPD”) – which acts as the City’s agent in the area of law enforcement and for which the City is ultimately responsible.

4. At all relevant times herein, the City, acting through defendant NEW YORK CITY POLICE DEPARTMENT, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline, retention, and conduct of all NYPD personnel. In addition, at all relevant times herein, the City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York. The NYPD maintains its principal offices at One Police Plaza, New York, NY 10038.

5. At all relevant times herein, defendant P.O. SERGEANT KAITLIN MOONEY, Tax #950909, is a natural person, employee of the City and NYPD, with a last-known business address located at c/o The City of New York, 100 Church St., New York, NY 10007, acting under color of state law in the course of their duties as agents, employees, and officers of the City and/or NYPD in engaging in the conduct described herein, and acting for and on behalf of the

City and/or NYPD with the power and authority vested in them as officers, agents, and employees of the City and/or the NYPD.

6. At all relevant times herein, defendant P.O. JOSEPH ORLANDO, Shield #2340 is a natural person, employee of the City and NYPD, with a last-known business address located at c/o The City of New York, 100 Church St., New York, NY 10007, acting under color of state law in the course of their duties as agents, employees, and officers of the City and/or NYPD in engaging in the conduct described herein, and acting for and on behalf of the City and/or NYPD with the power and authority vested in them as officers, agents, and employees of the City and/or the NYPD.

7. At all relevant times herein, defendant SYDELL GROUP LLC is a foreign limited liability company, with a designated registered agent service of process address of c/o National Registered Agents, 28 Liberty St., New York, NY 10005.

8. At all relevant times herein, defendant THE FREEHAND HOTEL COMPANY LLC is a foreign limited liability company, with a service of process address designated as 30 West 26<sup>th</sup> St., 12<sup>th</sup> Fl., New York, NY 10010.

9. At all relevant times herein, defendant FREEHAND HOSTEL MANAGER LLC is a foreign limited liability company, with a designated registered agent service address of c/o CT Corp. System, 28 Liberty St., New York, NY 10005.

10. At all relevant times herein, defendant GEORGE SUPER TOPCO LLC is a foreign limited liability company, with a designated registered agent service or process address of c/o Corp. Trust Center, 1209 Orange St., Wilmington, DE 19801.

11. At all relevant times herein, defendant MICHAEL LAMARRE is a natural person with a last-known business address of 30 West 26<sup>th</sup> St., 12<sup>th</sup> Fl., New York, NY 10010, and a last-known residence of 540 East 39<sup>th</sup> St., Brooklyn, NY 11203, as well a security professional

employed by defendant THE FREEHAND HOTEL COMPANY LLC, defendant FREEHAND HOSTEL MANAGER LLC, and/or defendant GEORGE SUPER TOPCO LLC.

12. At all relevant times herein, defendant PAUL KASHMAN is a natural person with a last-known business address of 30 West 26<sup>th</sup> St., 12<sup>th</sup> Fl., New York, NY 10010, as well as a general manager at defendant THE FREEHAND HOTEL COMPANY LLC, defendant FREEHAND HOSTEL MANAGER LLC, and/or defendant GEORGE SUPER TOPCO LLC.

13. At all relevant times herein, defendant MILDRED ANTOINE, is a natural person with a last-known residential address of 23 Lexington Ave., Apt. 1121, New York, NY 10010.

14. At all relevant times herein, defendant JOHN/JANE DOES 1-10 (“NYPD Personnel”) are, and/or were currently unidentified City and NYPD personnel, including, *inter alia*, officers, detectives, employees, and/or agents of the NYPD, employed by NYPD through the City, in both their official and individual capacities.

### **JURISDICTION & VENUE**

15. This Court’s jurisdiction is predicated upon CPLR § 301, as all parties hereto are domiciliaries of the State of New York, as well as pursuant to CPLR § 302(a), as all actions undertaken were directed toward and caused damage within the State of New York.

16. New York County is the appropriate venue for this action, pursuant to CPLR §§ 503, 504(3), and CPLR § 505(a), since the causes of action hereof against Defendant’s arose in New York County, and since the City maintain principal offices in New York County.

### **FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION**

#### **A. Notice of Claim & 50-H Hearing.**

17. On or around November 20<sup>th</sup>, 2020, Plaintiff timely served a verified notice of claim upon the City by delivering a true copy thereof in duplicate personally to the Office of the Comptroller of the City of New York and NYPD, setting forth, *inter alia*, the name and address

of the claimants and their attorneys, the date when, the place where, and the manner in which the claim herein arose, and the items of damage or injuries claimed.

18. Said verified notice of claim was duly served upon the City within ninety (90) days of said Arrest, and was assigned Office of the Comptroller Claim No. 2020PI028878.

19. As of the date hereof, more than thirty (30) days have elapsed since the service of said Verified Notice of Claim and that adjustment or payment thereof has been neglected and/or refused by Defendants.

20. After due notice, on or around December 13<sup>th</sup>, 2021, Plaintiff attended a 50-H hearing at a time and place designated by Defendants.

21. As of the date hereof, this matter has been commenced within one (1) year and ninety (90) days after the Incident upon which this matter is based.

**B. Unlawful Arrest of Plaintiffs.**

22. On or about August 27<sup>th</sup>, 2020, Plaintiff and her elderly mother were checked-in guests and lawful occupants for a number of weeks at the hotel and hospitality handicapped accommodation room of defendant THE FREEHAND HOTEL COMPANY LLC, defendant FREEHAND HOSTEL MANAGER LLC, and/or defendant GEORGE SUPER TOPCO LLC located at 23 Lexington Avenue, New York, NY 10010 (jointly, "Hotel").

23. During Plaintiff's and her mother's stay at the Hotel, Plaintiff's elderly mother – a dementia patient and long-term sufferer of complications resulting from a stroke – fell in the Hotel's handicapped shower due to an unattached wall seat, causing Plaintiff's elderly mother to suffer severe injuries and shout out in pain.

24. As a result of such fall, the occupant of the adjoining room, defendant MILDRED ANTOINE, commenced screaming through and banging on the adjoining Hotel wall.

25. Approximately thirty (30) minutes later, at the direction of the Hotel staff, Plaintiff placed garbage in the designated space in the Hotel hallway outside of the room.

26. While placing such garbage in the designated space in the Hotel hallway, Plaintiff was verbally and physically accosted by defendant MILDRED ANTOINE, wherefore defendant MILDRED ANTOINE rushed towards Plaintiff, struck Plaintiff, pulled Plaintiff's hair, and scratched Plaintiff (the "Attack").

27. The Attack was witnessed by Hotel custodians non-party LUIS RODRIGUEZ and non-party TOMAS TERRERO, whom pulled defendant MILDRED ANTOINE off Plaintiff.

28. The Attack was further recorded by Hotel security video and/or digital footage.

29. Immediately after the Attack, Plaintiff called the NYPD to report the Attack, as well as requested that the non-party witnesses LUIS RODRIGUEZ and TOMAS TERRERO report the Attack to the Hotel's agents – defendant MICHAEL LAMARRE and defendant PAUL KASHMAN – and retrieve such Hotel agents.

30. Approximately two (2) weeks prior to the Attack, defendant MILDRED ANTOINE commenced harassing Plaintiff by continually banging on her Hotel door, and attempting to yell through the Hotel door, for placing garbage in the designated space in the Hotel hallway as directed by the Hotel staff, wherefore Plaintiff made a report to the Hotel about such incidents prior to the Attack.

31. Upon information and belief, defendant MILDRED ANTOINE has a history of verbal and/or physical altercations with Hotel patrons, wherefore the Hotel had knowledge of defendant MILDRED ANTOINE's violent tendencies on and before the date of the Attack.

32. Subsequent to the Attack and upon the NYPD's arrival, the Hotel's agents – defendant MICHAEL LAMARRE and defendant PAUL KASHMAN – were the first people to converse with the agents of the City and/or NYPD, despite neither defendant MICHAEL

LAMARRE nor defendant PAUL KASHMAN personally witnessing defendant MILDRED ANTOINE's Attack upon Plaintiff.

33. Upon information and belief, defendant MICHAEL LAMARRE and defendant PAUL KASHMAN made false statements to defendant P.O. SERGEANT KAITLIN MOONEY, Tax #950909 and defendant P.O. JOSEPH ORLANDO, Shield #2340, summarily contending that Plaintiff had initiated and commenced the Attack against defendant MILDRED ANTOINE, whereas it was defendant MILDRED ANTOINE whom initiated and commenced the Attack against Plaintiff.

34. Thereafter, defendant P.O. SERGEANT KAITLIN MOONEY, Tax #950909 and defendant P.O. JOSEPH ORLANDO, Shield #2340, approached Plaintiff and declared that Plaintiff and her elderly mother were directed to vacate the hotel under threat of arrest without warrant, probable cause, justification, and/or consent.

35. Thereafter, Plaintiff – a lawful occupant of the Hotel as a Hotel patron – explained the circumstances of the Attack that transpired insofar as defendant MILDRED ANTOINE initiated and commenced the Attack against Plaintiff, whereupon Plaintiff refused to vacate the Hotel.

36. Thereafter, Defendant P.O. SERGEANT KAITLIN MOONEY, Tax #950909 and defendant P.O. JOSEPH ORLANDO, Shield #2340 had another brief sidebar with defendant MICHAEL LAMARRE and defendant PAUL KASHMAN, whereafter said agents of the City and/or NYPD, without warrant, probable cause, justification, consent, and/or reading Plaintiff her *Miranda* rights, forcibly placed silver manacles upon Plaintiff's wrists against her will, and forcibly removed Plaintiff from the Hotel, whereafter, Plaintiff was then transported by said agents of the City and/or NYPD to the City and/or NYPD's thirteenth (13<sup>th</sup>) precinct located at 230 East 21<sup>st</sup> Street, New York, NY 10010, held at such police precinct against her will without

warrant, probable cause, justification, consent, and/or reading Plaintiff her *Miranda* rights for over five (5) hours, criminally processed, and then issued a desk appearance, charging Plaintiff with, *inter alia*, a violation of New York Penal Law (“Penal Law”) § 120.05 *et seq.*

37. The handcuffs placed upon Plaintiff by said agents of the City and/or NYPD inflicted severe contusions and bruising to Plaintiff’s wrists.

38. Thereafter, said agents of the City and/or NYPD detained, imprisoned, and arrested Plaintiff without warrant, probable cause, justification, consent, and/or reading Plaintiff her *Miranda* rights.

39. Prior to the Arrest, said agents of the City and/or NYPD neither interviewed the two (2) on-site non-party witnesses LUIS RODRIGUEZ and TOMAS TERRERO, nor checked the Hotel’s digital and/or video recordings of the Attack, despite Plaintiff’s requests.

40. Meanwhile, unbeknownst to Plaintiff, said agents of the City and/or NYPD forcibly removed Plaintiff’s elderly mother from the Hotel without warrant, probable cause, justification, and/or consent, and delivered Plaintiff’s elderly mother to Bellevue hospital for unknown reasons, whereafter, Plaintiff’s elderly mother was held at Bellevue hospital against her will without warrant, probable cause, justification, and/or consent.

41. Said agents of the City and/or NYPD refused to disclose the location of Plaintiff’s elderly mother to Plaintiff until Plaintiff’s release.

42. Upon Plaintiff’s release, Plaintiff traveled to Bellevue hospital to retrieve Plaintiff’s elderly mother, whereupon Plaintiff was informed by Bellevue hospital that Plaintiff’s elderly mother was ineligible for release until the following day without warrant, probable cause, justification, and/or consent.

43. Thereafter, Plaintiff returned to the Hotel to retrieve the belongings of Plaintiff and Plaintiff's elderly mother with an approximate value of no less than ten thousand USD (\$10,000.00).

44. However, upon arrival at the Hotel, Plaintiff was informed by Hotel staff that the belongings of Plaintiff and Plaintiff's elderly mother were gathered and placed into garbage bags and left curbside, wherefore a number of the items were missing.

45. The following morning, Plaintiff again went to Bellevue hospital to retrieve Plaintiff's elderly mother and was informed that said agents of the City and/or NYPD dumped Plaintiff's elderly mother at reception, leading Bellevue hospital staff to believe that she was a homeless individual.

46. At all times herein, the actions of said agents of the Hotel, City, and/or NYPD in performing the Arrest were intentional, malicious, and without excuse or justification, wherefore said agents of the Hotel, City, and/or NYPD observed and/or had actual knowledge and/or constructive knowledge of the falsity, non-culpable nature, unconstitutionality, and/or illegality of Plaintiff's Arrest, and had reasonable opportunities to intervene to prevent and/or stop such conduct, but nevertheless failed to intervene.

47. At all times herein, said agents of the Hotel, City, and/or NYPD assisted each other in performing the Arrest and other heretofore described actions, lending lent their physical presence, support, and authority of their respective department, office, and/or agency to each other during the course of said Arrest.

48. As a direct and proximate cause of the heretofore described conduct by said agents of the Hotel, City, and/or NYPD, Plaintiff and Plaintiff's elderly mother have suffered the following injuries and damages as a result of violations of Plaintiff and Plaintiff's elderly mother's civil and constitutional rights, including, *inter alia*, violations of Plaintiffs' rights to: (a)

freedom from unreasonable searches and seizures of their person pursuant to the Fourth and Fourteenth Amendments to the United States Constitution; (b) due process of law pursuant to the Fourteenth Amendment to the United States Constitution; (c) freedom from unreasonable searches and seizures under Article One, Section Twelve of the New York State Constitution; and (d) due process under Article One, Section Six of the New York State Constitution.

49. As a direct and proximate cause of the heretofore described conduct by said Hotel, agents of the Hotel, City, and/or NYPD, including, *inter alia*, the Arrest, Plaintiff and Plaintiff's elderly mother have sustained and suffered, *inter alia*, severe emotional distress, loss of liberty, and violations of his constitutional civil rights, and as a result, was made ill and subjected to ridicule, scorn and derision by those knowing of her arrest and detention, physical pain and suffering, serious psychological emotional trauma and suffering, including fear, embarrassment, humiliation, mental anguish, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty, as well deprivation of the comfort and companionship of one another, and endured and will continue to endure loss of enjoyment of life, incurred and will continue to incur economic loss, and sustained other damages.

**AS AND FOR A FIRST CAUSE OF ACTION**  
**(Defamation)**

50. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

51. By virtue of the foregoing, defendant SYDELL GROUP LLC, defendant THE FREEHAND HOTEL COMPANY LLC, defendant FREEHAND HOSTEL MANAGER LLC, defendant GEORGE SUPER TOPCO LLC, defendant MICHAEL LAMARRE, and defendant PAUL KASHMAN, and their agents, servants, employees, and/or contractors (jointly, "Hotel Defendants") knowingly uttered and/or published false and defamatory statements to agents of the City and/or NYPD regarding Plaintiff and Plaintiff's elderly mother, directly and proximately

causing Plaintiff's Arrest, and causing injury to Plaintiff's reputation and character, wherefore the Hotel Defendants are jointly and severally liable to Plaintiff for all direct, natural, and proximate damages inflicted upon Plaintiff.

52. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION**  
**(Injurious Falsehood)**

53. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

54. By virtue of the foregoing, the Hotel Defendants knowingly uttered and/or published false and defamatory statements to agents of the City and/or NYPD with malice comprising ill will, scienter, and/or deliberate falsification regarding Plaintiff and Plaintiff's elderly mother, directly and proximately causing Plaintiff's Arrest, and causing injury to Plaintiff's reputation and character, inducing agents of City and/or NYPD to deprive Plaintiff of the benefits of her bargain with the Hotel, wherefore the Hotel Defendants are jointly and severally liable to Plaintiff for all direct, natural, and proximate damages inflicted upon Plaintiff.

55. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION**  
**(Negligent Misrepresentation)**

56. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

57. By virtue of the foregoing, the Hotel Defendants knowingly uttered and/or published false and defamatory statements to agents of the City and/or NYPD inflicting harm upon Plaintiff with awareness by the maker that the statements would lead to Plaintiff's removal

from the Hotel and/or Arrest, in furtherance of Plaintiff's removal from the Hotel and/or Arrest, wherefore said agents of the City and/or NYPD relied upon said Hotel Defendants' false and defamatory statements, wherefore the Hotel Defendants understood that said agents of the City and/or NYPD would rely upon said Hotel Defendants' false and defamatory statements, wherefore the Hotel Defendants are jointly and severally liable to Plaintiff for all direct, natural, and proximate damages inflicted upon Plaintiff

58. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION**  
**(Words Negligently Spoken)**

59. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

60. By virtue of the foregoing, the Hotel Defendants uttered false and/or erroneous statements to agents of the City and/or NYPD wherein the Hotel Defendants had a duty, if the Hotel Defendants spoke at all, to provide the correct information with due care, wherefore the Hotel Defendants had knowledge that the information desired is sought for a serious purpose to be relied upon and acted upon by agents of the City and/or NYPD, wherefore the Hotel Defendants are jointly and severally liable to Plaintiff for all direct, natural, and proximate damages inflicted upon Plaintiff.

61. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION**  
**(Failure to Warn & Protect)**

62. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

63. By virtue of the foregoing, the Hotel Defendants had a duty to control the conduct of their tenant, defendant MILDRED ANTOINE, where the Hotel Defendants had knowledge of defendant MILDRED ANTOINE's violent tendencies, to prevent defendant MILDRED ANTOINE from causing harm to Hotel patrons, including, *inter alia*, Plaintiff, wherefore Plaintiff has directly and proximately been damaged by the failure of the Hotel Defendants to protect Plaintiff from the violent tendencies of defendant MILDRED ANTOINE.

64. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION**  
**(Injury on Premises)**

65. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

66. By virtue of the foregoing, the Hotel Defendants were on notice of dangerous conditions, including, *inter alia*, the violent tendencies of defendant MILDRED ANTOINE, wherefore defendant MILDRED ANTOINE's violent tendencies were ongoing, recurring, and routinely left unaddressed by the Hotel Defendants, directly and proximately causing harm to Plaintiffs.

67. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION**  
**(Landlord's Servant Causing Injury)**

68. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

69. By virtue of the foregoing, Plaintiff has sustained injuries by virtue of the negligent acts of the Hotel Defendants performed within the scope of such Hotel Defendants'

scope of their duties in their master's service.

70. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION**  
**(Abuse of Process)**

71. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

72. By virtue of the foregoing, including, *inter alia*, the Arrest, the Hotel Defendants caused criminal process to be issued with the intent to do harm to Plaintiffs and without excuse or justification, wherefore the use of such criminal process was used in a perverted manner to obtain collateral objectives.

73. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION**  
**(*Prima Facie* Tort)**

74. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

75. By virtue of the foregoing acts or series of acts which would otherwise be lawful, the Hotel Defendants' conduct complained of was solely motivated by malice or disinterested malevolence without excuse or justification which was the direct and proximate cause of Plaintiffs' injuries since all injuries plead hereunder are of a type and nature reasonably foreseeable, wherefore Plaintiff has suffered a specific and measurable loss entitling Plaintiff to special damages.

76. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION**  
**(Battery)**

77. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

78. By virtue of the foregoing, defendant MILDRED ANTOINE intentionally caused harmful or offensive bodily contact with Plaintiff in a harmful and offensive manner and without Plaintiff's consent, which was the direct and proximate cause of Plaintiff's injuries since all injuries plead hereunder are of a type and nature reasonably foreseeable.

79. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION**  
**(Assault)**

80. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

81. By virtue of the foregoing, defendant MILDRED ANTOINE intentionally placed Plaintiff in apprehension of imminent harmful or offensive contact, which was the direct and proximate cause of Plaintiff's injuries since all injuries plead hereunder are of a type and nature reasonably foreseeable.

82. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A TWELFTH CAUSE OF ACTION**  
**(Intentional Infliction of Emotional Distress)**

83. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

84. By virtue of the foregoing, each of the Hotel Defendants, defendant MILDRED ANTOINE, the City, NYPD, and their employees and agents intentionally or recklessly engaged

in extreme and outrageous conduct intended to cause severe emotional distress to Plaintiff in refraining from battery and/or participating in the Arrest by giving false testimony and by failing to interview witnesses to the Attack and review security footage of the Attack, wherefore such extreme and outrageous conduct was the direct and proximate cause of Plaintiff's severe emotional distress, which was the direct and proximate cause of Plaintiff's injuries.

85. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION**  
**(Negligent Infliction of Emotional Distress)**

86. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

87. By virtue of the foregoing, each of the Hotel Defendants, defendant MILDRED ANTOINE, the City, NYPD, and their employees and agents owed a duty of care to Plaintiff in refraining from battery and/or performing their job functions which was breached by failing to interview witnesses to the Attack and review security footage of the Attack, which both caused Plaintiff to fear for her safety and liberty, and unreasonably endangered Plaintiff's physical safety and liberty, which was the direct and proximate cause of Plaintiff's injuries.

88. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION**  
**(Aiding & Abetting Tortious Conduct)**

89. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

90. By virtue of the foregoing, each of the Hotel Defendants, defendant MILDRED ANTOINE, the City, NYPD, and their employees and agents substantially aided, abetted, and

assisted one another in furtherance of the heretofore described tortious conduct inflicted upon Plaintiff with knowledge of each tortfeasor's independent tortious conduct, which was the direct and proximate cause of Plaintiff's injuries.

91. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION**  
**(Trespass to Chattels)**

92. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

93. By virtue of the foregoing, the Hotel Defendants intentionally and improperly interfered with Plaintiffs' possession of their personal effects in their Hotel room by disposing such personal effects in the Hotel garbage.

94. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION**  
**(Conversion)**

95. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

96. By virtue of the foregoing, the Hotel Defendants exercised unauthorized dominion over Plaintiffs' personal effects to the exclusion of Plaintiffs' rights, whereas Plaintiff had an immediate superior right of possession to Plaintiffs' personal effects.

97. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION**  
**(42 USC § 1983)**

98. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all

preceding paragraphs heretofore as if fully set forth herein.

99. The Federal Civil Rights Act – 42 USC § 1983 *et seq.* – provides a remedy for the violation of an individual’s civil rights as guaranteed by the United States Constitution.

100. Defendant City, defendant NYPD, defendant P.O. SERGEANT KAITLIN MOONEY, Tax #950909, defendant P.O. JOSEPH ORLANDO, Shield #2340, defendant MICHAEL LAMARRE, defendant PAUL KASHMAN, and defendants JOHN/JANE DOES 1-10 (jointly, “Municipal Defendants”) have deprived Plaintiffs of their civil, constitutional, and statutory rights under color of law by and through the Arrest, and thus, Municipal Defendants have conspired to deprive Plaintiffs of their civil, constitutional, and statutory rights, including, *inter alia*, Plaintiffs’ right to be free of unreasonable searches and seizures pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, Plaintiffs’ right to due process of law pursuant to the Fourteenth Amendment of the United States Constitution, thereby inflicting damages upon each of the Plaintiffs hereto.

101. Municipal Defendants failed to intervene in each other’s plainly false and unconstitutional Arrest of Plaintiffs, which was in violation of Plaintiffs’ civil rights, wherefore Municipal Defendants incur liability under 42 USC § 1983 *et seq.*

102. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR AN EIGHTEENTH CAUSE OF ACTION**  
**(Municipal & Supervisory Liability)**

103. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

104. The City is liable for the damages suffered by Plaintiffs as a result of the Arrest in violating Plaintiffs’ civil rights through the conduct of their employees, agents, and servants, in that after learning of said violation of Plaintiffs’ constitutional rights by the City and their

employees, agents, and servants, wherefore the City failed to remedy the wrong; the City has created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful conduct. The City has been alerted to the regular use of intimidation, excessive force, and false arrests by the NYPD, but has nevertheless exhibited deliberate indifference to such intimidation, excessive force, and false arrests, wherefore the City's deliberate indifference caused the violation of Plaintiffs' constitutional rights.

105. The Municipal Defendants' heretofore described Arrest was not an isolated incident; the City has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of the NYPD personnel use intimidation, excessive force, unlawful search and seizure of citizens, bringing charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow NYPD personnel. Nevertheless, the City has allowed policies and practices that create the conditions facilitating the heretofore described Arrest.

106. The Civilian Complaint Review Board's (hereinafter, "CCRB") well documented failures to substantiate obviously meritorious citizen complaints have regularly gone uncorrected by the City.<sup>1</sup>

107. Upon information and belief, once receiving a substantiated complaint by the CCRB, the NYPD regularly fails to adequately discipline officers for misconduct. The NYPD

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<sup>1</sup> The CCRB regularly finds complainants lack credibility based upon the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to them. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations of the NYPD once finding misconduct by an officer.

Department Advocate, which is endowed with the responsibility of following-up on substantiated CCRB charges, is understaffed and underutilized. Indeed, in the extraordinarily rare event that the CCRB substantiates a complaint and the CCRB Department Advocate proves the case in an internal trial against an NYPD officer, the NYPD Police Commissioner still maintains the power to reduce the discipline against such an officer.

108. Upon information and belief, the City has no procedure to notify individual NYPD personnel, officers, or their supervisors, of unfavorable judicial review of their conduct, wherefore the absence of such notification, improper search and seizer practices and incredible testimony regularly go uncorrected.<sup>2</sup>

109. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights, and despite possessing such notice, the City has failed to take corrective action. The City's collective failure to remedy these policies has caused the NYPD personnel, officers, and their supervisors in the present matter to violate Plaintiffs' civil rights without fear of reprisal.

110. Thus, the City has been alerted to the regular use of the NYPD's intimidation, excessive force, and false imprisonment by NYPD personnel, officers, and their supervisors, but nevertheless exhibited deliberate indifference to such NYPD intimidation, excessive force, and false imprisonment, with knowledge that such inaction could lead to violations of the City's citizens' civil and constitutional rights, thereby inflicting damages as a result of the heretofore described violations of Plaintiffs' civil and constitutional rights.

111. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

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<sup>2</sup> Additionally, upon information and belief, the City has isolated their law department from the discipline of NYPD personnel, officers, and their supervisors, so that civil suits against such persons for actions taken in their capacity as NYPD personnel, officers, and their supervisors have no impact upon such persons' careers, regardless of the outcome of the civil actions.

**AS AND FOR A NINETEENTH CAUSE OF ACTION**  
**(Negligent Hiring & Retention)**

112. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

113. The City, by and through the NYPD, owed a duty or reasonable care to Plaintiffs to prevent the loss of liberty and other such related damages inflicted upon Plaintiffs in the employment, training, and supervision of its employees, including, but not limited to its police personnel, and to ascertain whether they were competent to carry on the activities and duties entrusted and assigned to them without danger of harm to others.

114. Upon information and belief, the City had knowledge that the NYPD personnel participating in the herein described Arrest, detention, and prosecution of Plaintiffs were incompetent, of vicious propensities, of bad disposition, and of bad temperament, judgement and discretion, or had knowledge of facts which would put a reasonable person on notice concerning the aforesaid personnel's incompetence and characteristics, and that the City, by and through the NYPD failed to correct or remove said personnel.

115. The City breached said duty owed to the City's citizens, including Plaintiffs hereof, in acting careless and reckless in the hiring, training, discipline, and supervision of NYPD personnel.

116. By virtue of Municipal Defendants' heretofore described conduct, including, *inter alia*, the Arrest, Plaintiffs have been damaged and continues to sustain damages which are directly and proximately caused, since such injuries plead hereunder are of a type and nature reasonably foreseeable by Defendants' heretofore described conduct

117. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A TWENTIETH CAUSE OF ACTION**  
**(State Constitutional Tort)**

118. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

119. By virtue of the foregoing, including, *inter alia*, the Arrest, Municipal Defendants, acting under color of law, violated Plaintiffs' rights vested under Articles Five, Six, and Twelve of the New York State Constitution.

120. A damages remedy is necessary and appropriate to effectuate the purposes of Articles Five, Six, and Twelve of the New York State Constitution, as well as to ensure a full realization of Plaintiff's civil and constitutional rights thereunder.

121. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION**  
**(Abuse of Process)**

122. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

123. By virtue of the foregoing, including, *inter alia*, the Arrest, the Municipal Defendants caused criminal process to be issued with the intent to do harm to Plaintiffs and without excuse or justification, wherefore the use of such criminal process was used in a perverted manner to obtain collateral objectives.

124. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A TWENTY-SECOND CAUSE OF ACTION**  
**(Assault)**

125. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

126. By virtue of the foregoing, the Municipal Defendants intentionally placed Plaintiffs in apprehension of imminent harmful or offensive contact, which was the direct and proximate cause of Plaintiffs' injuries since all injuries plead hereunder are of a type and nature reasonably foreseeable.

127. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A TWENTY-THIRD CAUSE OF ACTION**  
**(Battery)**

128. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

129. By virtue of the foregoing, the Municipal Defendants intentionally caused harmful or offensive bodily contact with Plaintiff in a harmful and offensive manner and without Plaintiff's consent, which was the direct and proximate cause of Plaintiff's injuries, since all injuries plead hereunder are of a type and nature reasonably foreseeable.

130. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION**  
**(False Imprisonment)**

131. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

132. By virtue of the foregoing, Municipal Defendants intended to confine Plaintiffs and succeeded in confining Plaintiff without the implied or express consent of Plaintiffs, and in the absence of any warrant, privilege, or justification, wherein at all times during the heretofore described events, Plaintiffs were conscious, alert, ambulatory, awake, and/or aware of the Municipal Defendants' said confinement of Plaintiffs.

133. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION**  
**(Loss of Consortium)**

134. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

135. By virtue of the foregoing, each of Plaintiffs suffered loss of consortium of one another during the period prior to the death of Plaintiff's mother TINA GAVIOLA as a direct and proximate result of the damages inflicted upon each of Plaintiffs.

136. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION**  
**(Survivorship)**

137. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in all preceding paragraphs heretofore as if fully set forth herein.

138. By virtue of the foregoing, as a direct and proximate result of Defendants' neglect and wrongful acts, Plaintiff's mother, TINA GAVIOLA, incurred pain and suffering, wherefore she had cognitive awareness of such pain and suffering during the period prior to her death.

139. Accordingly, Plaintiffs have been damaged in an amount to be determined at trial, exceeding the jurisdictional threshold of all lower Courts.

**PRAYER FOR RELIEF**

**WHEREFORE**, Plaintiffs respectfully request judgment against Defendants jointly and severally in the form of monetary damages, including special, compensatory, and punitive damages in the amount of not less than five million USD (\$5,000,000.00), an award of all costs,

disbursements, and attorneys' fees in Plaintiffs' favor, as well as such other and further relief as this Court deems just and proper.

Dated: New York, New York  
March 4<sup>th</sup>, 2022

Yours etc.,  
**SUTTON SACHS MEYER PLLC**  
*Attorneys for Plaintiffs*

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To: THE CITY OF NEW YORK s/h/a NEW YORK CITY POLICE DEPARTMENT  
-and-  
P.O. SERGEANT KAITLIN MOONEY, Tax #950909  
-and-  
P.O. JOSEPH ORLANDO, Shield #2340  
c/o Georgia Pestana, Corp. Counsel  
Attn: Pamela M. Horan, Esq.  
100 Church St.  
New York, NY 10007  
*Attorneys for Defendants*

SYDELL GROUP LLC  
c/o National Registered Agents  
28 Liberty St.  
New York, NY 10005  
*Defendant*

THE FREEHAND HOTEL COMPANY LLC  
30 West 26<sup>th</sup> St., 12<sup>th</sup> Fl.  
New York, NY 10010  
*Defendant*

FREEHAND HOSTEL MANAGER LLC  
c/o CT Corp. System  
28 Liberty St.  
New York, NY 10005  
*Defendant*

GEORGE SUPER TOPCO LLC

c/o Corp. Trust Center  
1209 Orange St.  
Wilmington, DE 19801  
*Defendant*

MICHAEL LAMARRE  
540 East 39<sup>th</sup> St.  
Brooklyn, NY 11203  
*Defendant*

PAUL KASHMAN  
30 West 26<sup>th</sup> St., 12<sup>th</sup> Fl.  
New York, NY 10010  
*Defendant*

MILDRED ANTOINE  
23 Lexington Ave., Apt. 1121  
New York, NY 10010  
*Defendant*

PLAINTIFFS' VERIFICATION

STATE OF New York )  
COUNTY OF New York ) s.s.:

GIRLIE GAVIOLA, being duly sworn, hereby deposes and says the following under the penalties of perjury:

1. I, GIRLIE GAVIOLA, individually, and GIRLIE GAVIOLA *ex rel.* ESTATE OF TINA GAVIOLA, am the plaintiff in the above-captioned matter.

2. I have read the annexed verified complaint, know the contents thereof, and the same is true to my own knowledge as to the matters I believe to be true, except for those matters therein which are stated to be alleged upon information and belief.

Girlye E Gaviola  
GIRLIE GAVIOLA

Sworn and subscribed before me on  
this 27 day of 03, 2022

Corinne M Girard  
Notary Public

Corinne M. Girard  
NOTARY PUBLIC, STATE OF NEW YORK  
Registration No. 01G16410102  
New York, New York  
Commission Expires October 19, 2024